

registered or certified mail or as provided in the agreement.” In addition, a party may seek a court judgment confirming an arbitration award by filing and serving a petition no more than four years, but not less than 10 days, after the award is served. (Code Civ. Proc. §§ 1288, 1288.4.)

The petition indicates that the arbitration panel served a signed copy of the award onto each party, and the petition is timely.

Code of Civil Procedure section 1290.4, the statute governing proper service of this Petition states, in pertinent part:

(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

The petition was served compliance with Code of Civil Procedure section 1290.4.

Having met the requirements of Code of Civil Procedure sections 1285 and 1285.4, the petition is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** June 17, 2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: **Brooklyn Farms, LLC v. Fromaggio Farms, LLC et al.**
Superior Court Case No. 24CECG05078

Hearing Date: June 18, 2026 (Dept. 403)

Motion: (1) By Plaintiff for Motion to Strike Answer and Cross-Complaint
(2) By Plaintiff for Writ of Possession

Tentative Ruling:

To continue the motion to strike to Tuesday July 16, 2026, at 3:30 p.m. in Department 403, to allow defendant Fromaggio Farms, LLC. one last chance to retain new counsel, and to file a substitution of attorney on or before 5:00 p.m., July 6, 2026.

To direct the parties to appear as to the petition for writ of possession.

Explanation:

The court has discretion under Code of Civil Procedure section 436, subdivision (a), to strike out any "irrelevant, false, or improper matter inserted in any pleading," or, under subdivision (b), the court may strike out any part, or all, of a pleading "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) The grounds to strike pleadings under subdivision (b) is limited to improprieties in its form or in the procedures pursuant to which it was filed. (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528.)

A business entity is not a natural person, and therefore cannot appear in an action *in propria persona*, but instead must appear only through counsel. (See *Merco Construction Engineers, Inc. v. Municipal Court*. (1978) 21 Cal.3d 724, 731 [regarding corporations].) A complaint, an answer, or any pleading filed on behalf of an unrepresented corporation may be stricken, however, the court may grant leave allowing the corporation to retain counsel. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1147; *Himmel v. City Council* (1959) 169 Cal.App.2d 97, 100.)

In the case at bench, plaintiff Brooklyn Farms, LLC ("Plaintiff") moves to strike the Answer and Cross-Complaint filed on behalf of defendant Fromaggio Farms, LLC ("Defendant"). Plaintiff submits that Defendant is now improperly a self-represented business entity.

Here, Defendant was represented by counsel when it filed its Answer and Cross-Complaint. However, its attorney obtained an order to withdraw on October 23, 2025. The order indicated that the withdrawal would be effective upon the filing of the proof of service of the orders on Defendant. A proof of service was filed on October 29, 2025.

The order allowing its attorney to withdraw was made after due notice was given to Defendant. The motion and the order were drawn on the mandated Judicial Council

forms, which are designed to be easily understood by non-attorney litigants. The order thus gave Defendant the following "NOTICE TO CLIENT" (set off from the rest of the form in a text box):

"Your present attorney will no longer be representing you. You may not in most cases represent yourself if you are one of the parties on the following list: ...An unincorporated association.... If you are one of these parties, YOU SHOULD IMMEDIATELY SEEK LEGAL ADVICE REGARDING LEGAL REPRESENTATION. Failure to retain an attorney may lead to an order striking the pleadings or to the entry of a default judgment."

(Order filed October 23, 2025, at Page 2, Item 10 (bolded and upper case text in the original).)

Thus, Defendant was notified: 1) of its attorney's withdrawal; 2) that as an entity it could not represent itself, and thus it needed to immediately seek other counsel; and 3) that the consequences of not doing so might be "an order striking the pleadings or...the entry of a default judgment." (October 23, 2025, Order, p. 2.) Defendant has had over seven months to retain other counsel, and apparently it has not done so. It has not filed any response to this motion. The court continues the matter for one final period to allow Defendant to cure.

The court notes that Plaintiff seeks to strike the entirety of the Answer and Cross-Complaint. Because the individual defendant, Sarah Schroeder, is an individual, she maintains her portions of the Answer and Cross-Complaint. Thus, the motion to strike is denied to the extent it seeks to affect defendant Sarah Schroeder.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** June 17, 2026.
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